

What is a declaration of compliance?

A declaration of compliance is a statement made by the manufacturer regarding the eligibility of the prescribed milk and milk products being exported.

The declaration must state the specific dairy products being exported meets all the requirements of the [Export Control \(Milk and Milk Products\) Rules 2021](#), and any specific importing country requirement. This shows the product is:

- eligible for export
- fit for human consumption
- meets any specific importing country requirements.

A declaration of compliance is required for every export shipment and must cover all milk and milk products being exported (either directly or by a third party).

If the goods have been manufactured by the one manufacturer, one declaration will cover all products. If the goods are produced by several manufacturers, then a declaration from each manufacturer is needed.

Approved arrangements (AA)

Documented procedures need to be included in the company's [approved arrangement \(AA\)](#). As a minimum, procedures will need to ensure:

- a declaration will be issued for each export shipment
- the declaration must only be signed by a person nominated in the company's approved arrangement as a person eligible to make such a declaration (electronic signatures are acceptable) —they do not need to be listed on the registration certificate, only in the approved arrangements
- staff signing these documents understand on what basis the declaration is issued
- records are kept of the relevant testing and information to support export eligibility
- triggers for corrective action when requirements have not been met
- declarations of compliance and transfer documents will include a statement about country eligibility (if applicable)
- this statement is mandatory for some countries including China (liquid milk only). and the European Union (EU)
- how non eligible product is identified in the system and identifies the circumstances when a declaration cannot be issued
- the [minimum details to be included in the declaration](#).

Importing country requirements

If you are exporting product to a country that your establishment has gained specific approval to export to (for example the EU), you will need to state that the product is eligible to be sent to that country on your declaration of compliance and [transfer documents](#). This is particularly important when you sell your product to a third-party manufacturer who may use the product for further processing before exporting.

As the manufacturer you may not be aware of where the product is being exported to, however, as a manufacturer you will know if the product meets specific importing country requirements.

If a product has been made for any other particular market, then those country details should be included on the declaration of compliance.

See our [Manual of Importing Country Requirements](#) (Micor).

Contract manufacturer responsibilities

If you are a contract manufacturer (ingredients and packaging are provided by a third party), you are responsible for issuing the declaration of compliance, regardless of who provides the raw material.

To support issuing a declaration of compliance you need to obtain evidence from approved suppliers indicating dairy ingredients used in the production of your products comply with any specific importing country requirements.

If you cannot obtain or verify this information, the products you produce are not eligible for export to that market and must be reflected on the declaration of compliance.

If during the course of an audit it is found you are not complying with requirements for declarations of compliance or there are no records available to verify your export eligibility, your eligibility to export to a specific importing country may be suspended or cancelled.

Minimum requirements for declarations of compliance

There are certain requirements which must be met in your declaration of compliance, as a minimum. Details are to include:

- your company name, address and contact details)
- your registered establishment number
- full description for each good being exported including:
 - product description
 - manufacturing establishment number
 - batch number or product code
 - date of manufacture
 - number of units (packages)

- total weight
- if the product is eligible for a specific importing country

You must also make a statement declaring that:

- the information is true and complete for the manufacturing establishment
- you understand that the processed food was manufactured in accordance with:
- all the conditions and restrictions specified in the Export Control (Milk and Milk Products) Rules 2021
- the applicable approved arrangements and the conditions of that arrangement
- importing country requirements.

If no specific country has been nominated in the declaration, then the product identified has been manufactured to the general export standards and not in accordance with any specific importing country requirement. Exporters should confirm with the manufacturer that a product is eligible with a specific importing country's requirements.

Example of a declaration of compliance showing the minimum details required

Company name

Address

Phone: (oX) XXXX XXXX

Registered establishment number: XXXX

Product description	Manufacturing establishment number	Batch/ product code	Manufacture date	Number of units	Total weight
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Declaration by manufacturing establishment.

At the date that I, the undersigned make this declaration, the processed dairy product described above was manufactured in accordance with:

If no specific country has been nominated above, then the product identified in this declaration has been manufactured to the general export standard and not in accordance with any specific importing country requirement. Further information regarding importing country eligibility should

be confirmed by contacting (name of
manufacturing company).

I further declare the information contained in
this declaration is true and complete.

Printed Name:

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Position:

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Signed:

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Dated

...../...../.....

Find out more about [exporting dairy and dairy products](https://www.agriculture.gov.au/biosecurity-trade/export/controlled-goods/dairy/registered-establishment/declaration-compliance).

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